



Case No. 2:25-CV-00405-RMG-MGB

November 1 request was untimely. At the same time, defense counsel stated an intent to serve a new subpoena to Amentum Corporation on November 3 2025.

4. Attorney Lindsay Swiger of Jackson Lewis (Jacksonville FL office) represents Amentum Corporation. Thus, the same law firm represents both Defendant Curtiss-Wright and Amentum. Plaintiff was terminated from Amentum on October 29 2025 — one day after her deposition in this case, during which Jackson Lewis counsel questioned her extensively about her employment with Amentum and her pending lawsuit against Amentum. The timing and overlapping representation demonstrate a strong appearance of coordinated retaliation and conflict of interest.

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## **II. Argument**

### **A. Plaintiff's Title VI Request Was Timely and Proportional**

The supplemental Title VI request was served before the cutoff. Rule 16(b)(4) permits modification for good cause where information is newly discovered and essential to claims or defenses.

Defendant's simultaneous plan to issue new subpoenas after calling Plaintiff's request "untimely" shows selective and inequitable enforcement of the Scheduling Order.

### **B. Selective Enforcement of the Scheduling Order**

Defendant cannot claim discovery is closed for Plaintiff while continuing its own post-deadline discovery. Such conduct violates Rule 26(b)(1)'s proportionality principle and prejudices Plaintiff's ability to obtain evidence of retaliation and coordination between Curtiss-Wright, Amentum, and Jackson Lewis.

### **C. Protective Order Regarding Medical and Financial Records**

Defendant continues to demand Plaintiff's complete medical and tax records despite her repeated written and oral objections. Under Rule 26(c) and *Jaffee v. Redmond*, 518 U.S. 1 (1996), psychotherapy records are privileged. Discovery should be limited to information directly relevant to emotional-distress damages. Plaintiff offered a summary letter from her therapist instead of full files. The blanket demand is disproportionate and intrusive.

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**D. Post-Deposition Retaliation and Need for Limited Discovery Extension**

The overlapping representation of Curtiss-Wright and Amentum and Plaintiff's termination the day after her deposition support an inference of post-employment retaliation under Title VII and 42 U.S.C. § 1981. Plaintiff requests a 30-day extension of discovery for the limited purpose of obtaining communications among Curtiss-Wright, Amentum, and Jackson Lewis concerning Plaintiff or her litigation.

**E. Defense's Overbroad Demands and Failure to Respond**

Defendant continues to demand irrelevant documents such as Plaintiff's résumé and tax returns, while refusing to produce its own basic records including employee badge-time logs and Title VI funding documents. Plaintiff has already testified about her employment history and Amentum lawsuit; a résumé adds nothing and the tax records are irrelevant. Defendant's non-production while pursuing personal information illustrates bad-faith harassment.

**F. Defense Obstruction of Jeff Womack Deposition**

Plaintiff properly noticed Jeff Womack's deposition for November 5 2025 within the discovery period. Defense previously represented that Mr. Womack would return to work on November 2, but on November 3 claimed he has "another doctor's appointment" and will not appear, without documentation or new date. Under Rule 37(d), the failure to produce a noticed witness warrants sanctions and reimbursement of Plaintiff's expenses. Plaintiff requests that the Court compel Mr. Womack's deposition within 14 days of his medical clearance and award expenses for rescheduling.

**G. Defense's Third-Party Subpoenas Served After the Cutoff**

On November 3 2025, Defendant first notified Plaintiff that it had issued October 31 2025 subpoenas to Sue E. Shealy, LISW-CP and Amentum Services, Inc. commanding production by November 20 2025—fifteen days after the discovery cutoff. Defendant also failed to provide advance notice before service as required by Rule 45(a)(4). Discovery must be completed, not merely initiated, by the cutoff. See *Patterson v. Avery Dennison Corp.*, 281 F.3d 676 (7th Cir. 2002).

Plaintiff's therapist has confirmed she will not produce records without a court order, citing the

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psychotherapist–patient privilege. Plaintiff supports that decision and asks the Court to quash or stay both subpoenas as untimely and improper.

On **October 16 2025**, defense counsel Joseph Valenza emailed Plaintiff asserting that “*all discovery shall be completed no later than November 5, 2025*” pursuant to the Court’s Scheduling Order (Exhibit L). Despite that acknowledgment, defense issued subpoenas dated **October 31, 2025** requiring production by **November 20, 2025**, in clear contradiction of its own interpretation of the discovery deadline. This inconsistency evidences bad-faith manipulation of the discovery schedule and supports quashing both subpoenas.

#### **H. Defendant’s Pattern of Discovery Misconduct**

Defendant’s September 12, 2025 responses to Plaintiff’s first interrogatories and production requests are deficient. Each answer consists of boilerplate denials of knowledge and incomplete productions. Defendant also produced a distorted “Final Warning” (DEFs 000281-283) omitting context and signatures, while refusing to produce unredacted comparator DARs and badge-time records requested in Plaintiff’s Supplemental RFP. Such evasive responses violate Rule 37(a)(4) and Rule 26(g). Plaintiff requests an order compelling complete verified responses and awarding expenses under Rule 37(a)(5).

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#### **III. Relief Requested**

Plaintiff respectfully requests that the Court:

1. Compel Defendant to respond in full to Plaintiff’s Supplemental Request for Production (Title VI funding and U.S. Navy communications);
2. Require Defendant to produce all communications between Curtiss-Wright, Jackson Lewis, and Amentum relating to Plaintiff;
3. Limit Defendant’s medical and financial requests to documents directly supporting damages;
4. Preclude Defendant from issuing further third-party subpoenas without leave of Court;
5. Extend discovery 30 days for the limited purpose of investigating post-deposition retaliation and taking Jeff Womack’s deposition;

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6. Award Plaintiff reasonable expenses under Rule 37(d)(3) for costs associated with Defendant's failure to produce Mr. Womack on November 5 2025;
7. Quash the October 31 2025 subpoenas to Sue E. Shealy, LISW-CP and Amentum Services, Inc., and uphold Ms. Shealy's refusal to produce privileged records;
8. Declare those subpoenas untimely under the Scheduling Order and prohibit any post-deadline production; and
9. Find Defendant's September 12 2025 responses deficient under Rule 37(a)(4), compel complete verified answers within 14 days, and award Plaintiff her reasonable expenses and costs.

**Exhibit Index**

A – Plaintiff's Supplemental Request for Production (Title VI)

B – Plaintiff's Request for NDT Test Scores (Nov 1, 2025)

C – Defense Deficiency Letter (Nov 3, 2025)

D – Subpoenas to Sue Shealy (Oct 31, 2025)

E – Defendant's Responses to First Interrogatories (Sept 12, 2025)

F – Defendant's Responses to First RFPs (Sept 12, 2025)

G – Distorted "Final Warning" (DEFS 000281-283)

H – Plaintiff's Notice of Deposition – Jeff Womack

I – Plaintiff's Supplemental RFP for DAR and Badge Times

J – Proof of Defense Intent to Subpoena Amentum

K – Email and Proof of Termination Coordination (Amentum/Jackson Lewis)

L – Email from Joseph Valenza (Oct 16 2025) Confirming Discovery Cutoff and Untimeliness

Respectfully submitted 5th of October, 2025,



Debra Nelson

Plaintiff, Pro Se





Debra Nelson <[REDACTED]>

## Supplemental Request for Production – Title VI / Federal Funding Information

4 messages

Debra Nelson <[REDACTED]>

Mon, Nov 3, 2025 at 1:26 PM

To: "Samples, T. Chase (Greenville)" <chase.samples@jacksonlewis.com>, "Valenza, Joseph V. (Greenville)" <joseph.valenza@jacksonlewis.com>

Pursuant to Rules 26 and 34 of the Federal Rules of Civil Procedure, Plaintiff requests that Defendant Curtiss-Wright Corporation produce the following documents no later than November 5, 2025:

1. All documents, communications, contracts, grants, or agreements between Curtiss-Wright (including any divisions or subsidiaries) and the U.S. Department of Defense or U.S. Navy reflecting receipt of federal financial assistance, federal grants, or cooperative agreements subject to Title VI of the Civil Rights Act of 1964 (42 U.S.C. § 2000d et seq.).
2. All certifications, compliance statements, or assurances signed by Curtiss-Wright or any affiliate in connection with such funding or contracts indicating compliance with Title VI or related nondiscrimination provisions.
3. Documents identifying the departments or officers within Curtiss-Wright responsible for compliance with federal nondiscrimination obligations.

These requests are limited to the period January 1 2018 to present and are directly relevant to Plaintiff's claims of discrimination and retaliation by a federal contractor receiving Title VI-covered funding.

Please confirm receipt and whether Curtiss-Wright will produce responsive materials by the discovery deadline. This supplemental request is made in good faith before the close of discovery.

Valenza, Joseph V. (Greenville) <Joseph.Valenza@jacksonlewis.com>

Mon, Nov 3, 2025 at 2:20 PM

To: Debra Nelson <[REDACTED]>

Cc: "Samples, T. Chase (Greenville)" <Chase.Samples@jacksonlewis.com>

Ms. Nelson,

As you are aware from my previous emails, per the Court's July 8<sup>th</sup> Scheduling Order all discovery requests that would have a due date after the November 5<sup>th</sup> discovery deadline are untimely. Under Rule 34, the time period to respond is 30 days from the date you serve us with the request. The deadline for the request you made today would be December 3<sup>rd</sup>. Because these requests are untimely, we will not be responding to them.



**Joseph V. Valenza**

Attorney at Law

**Jackson Lewis P.C.**

15 South Main Street  
Suite 700

Greenville, SC 29601

Direct: (864) 672-8078 | Main: (864) 232-7000

[Joseph.Valenza@jacksonlewis.com](mailto:Joseph.Valenza@jacksonlewis.com) | [www.jacksonlewis.com](http://www.jacksonlewis.com)

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**EXHIBIT A**

**Debra Nelson** <nelsondebra62@gmail.com>

Mon, Nov 3, 2025 at 4:39 PM

To: "Valenza, Joseph V. (Greenville)" &lt;Joseph.Valenza@jacksonlewis.com&gt;

Cc: "Samples, T. Chase (Greenville)" &lt;Chase.Samples@jacksonlewis.com&gt;

Defendant cannot invoke the November 5 2025 discovery cutoff to block Plaintiff's supplemental discovery requests while simultaneously issuing new subpoenas of its own after that same deadline. Plaintiff's request for Title VI-related documents from Curtiss-Wright was served in good faith before the close of discovery and concerns information that only became relevant once Defendant's funding relationship with the U.S. Navy was identified. By contrast, Defendant's post-deadline subpoena to Amentum demonstrates selective enforcement of the Scheduling Order and underscores the need for the Court's intervention under Rules 16(b)(4) and 37(a).

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image363183.png  
2K**Valenza, Joseph V. (Greenville)** <Joseph.Valenza@jacksonlewis.com>

Mon, Nov 3, 2025 at 5:08 PM

To: Debra Nelson &lt;[REDACTED]&gt;

Cc: "Samples, T. Chase (Greenville)" &lt;Chase.Samples@jacksonlewis.com&gt;

Ms. Nelson,

Please see the attached deficiency letter regarding your responses to Defendants' First Requests for Production and First Set of Interrogatories. Please cure these deficiencies by 12:00 p.m. on November 5 to avoid a Motion to Compel.

[Quoted text hidden]

**Deficiency Ltr re First Discovery Responses.pdf**

73K

**EXHIBIT A**

Fri, Oct 17, 2025 at 7:50 PM

**Debra Nelson** <nelsondebra62@gmail.com>

To: "Valenza, Joseph V. (Greenville)" &lt;Joseph.Valenza@jacksonlewis.com&gt;

Cc: "Samples, T. Chase (Greenville)" &lt;Chase.Samples@jacksonlewis.com&gt;

Please find attached Plaintiff's Supplemental Request for Production served under Rule 34 relating to unredacted DAR reports and badge-access records

[Quoted text hidden]

**Signed Supplementa Request for Production - DAR and Badge Access Times.pdf**

314K

**Debra Nelson** <[REDACTED]>

Fri, Oct 31, 2025 at 10:52 AM

To: "Valenza, Joseph V. (Greenville)" &lt;Joseph.Valenza@jacksonlewis.com&gt;

Good morning Counsel,

What's the status on my Production request. I need this information on or before November 3, 2025

[Quoted text hidden]

**Valenza, Joseph V. (Greenville)** <Joseph.Valenza@jacksonlewis.com>

Fri, Oct 31, 2025 at 1:54 PM

To: Debra Nelson &lt;[REDACTED]&gt;

Cc: "Samples, T. Chase (Greenville)" &lt;Chase.Samples@jacksonlewis.com&gt;

Ms. Nelson,

This email is in response to your email below and the email containing additional written discovery requests that you sent to us this morning. As I stated in my previous email, per the Court's July 8<sup>th</sup> Scheduling Order, all discovery requests that would have a due date after the November 5, 2025 discovery deadline are untimely. Under Rule 34, the time period to respond is 30 days from the date you serve us with the request. The discovery requests that you served on October 15 and today, October 31, would have due dates after the discovery deadline. Because these requests are untimely, we will not be responding to them.

Additionally, the unredacted DAR reports for Michelle Broman-Boltan and Brian Fogarty were already produced to you in Defendants' Responses to Plaintiff's Third Requests for Production.

[Quoted text hidden]

**Debra Nelson** <[REDACTED]>

Fri, Oct 31, 2025 at 7:05 PM

To: "Valenza, Joseph V. (Greenville)" &lt;Joseph.Valenza@jacksonlewis.com&gt;

Cc: "Samples, T. Chase (Greenville)" &lt;Chase.Samples@jacksonlewis.com&gt;

When was this third request sent out because I would have to check.

[Quoted text hidden]

**Debra Nelson** <[REDACTED]>

Sat, Nov 1, 2025 at 4:18 PM

To: "Valenza, Joseph V. (Greenville)" &lt;Joseph.Valenza@jacksonlewis.com&gt;

Cc: "Samples, T. Chase (Greenville)" &lt;Chase.Samples@jacksonlewis.com&gt;

I would like copies of ALL NDT tests taken by myself and Patrick Ingram. First page only will suffice. It includes the dates, method, name and score. Joe Cabaup has to maintain training records for a required amount of time. Joe Cabaup stated he still has my tests in the deposition on 10/21/25. I would like the copies on or before 11/5/25

[Quoted text hidden]

**EXHIBIT B****Samples, T. Chase (Greenville)** <Chase.Samples@jacksonlewis.com>

Mon, Nov 3, 2025 at 10:33 AM

To: Debra Nelson &lt;[REDACTED]&gt;



# JacksonLewis

Jackson Lewis P.C.  
15 South Main Street, Suite 700  
Greenville SC 29601  
(864) 232-7000 Main  
(864) 235-1381 Fax  
[jacksonlewis.com](http://jacksonlewis.com)

November 3, 2025



**Re: Debra Nelson v. Curtiss Wright Electro Mechanical Corp. et al.**  
**Case No. 2:25-cv-00405-RMG-MGB**

Ms. Nelson:

We are writing to address the deficiencies in your production and responses to Defendants' First Requests for Production and First Set of Interrogatories that were served on you on September 22, 2025, and were due on October 22, 2025. We received your responses on October 23 and October 25. Your responses are deficient and we ask that you promptly supplement them or we will file a motion to compel with the Court.

In the last month alone, Defendants have timely responded to four sets of written discovery—a fifth is on the way—and produced eight witnesses for deposition; and you had filed multiple motions with the court, some prematurely, seeking documents that Defendants do not possess and to produce witnesses that you have been advised are on leave. Defendants have expended significant resources and effort to comply with your discovery requests in a timely manner.

Now, in response to Defendants' first set of routine discovery requests, not only were your responses served late, but you have objected to producing documents without a good faith basis. For example, you contend that producing a copy of your current resume is "overly broad and seeking information for the purposes of harassment." There is no good faith basis to claim that requesting your current resume, a single document, is "overbroad;" and because a central claim of this lawsuit is that you were discriminated against because a white male comparator was promoted and paid more than you despite the fact that you were more qualified and had more experience, asking for your current resume as evidence of that experience and qualifications is not harassment. You objected to each request on the basis of attorney-client privilege despite the fact that no request seeks privileged information and you are not represented by an attorney. You have also objected to producing financial and medical documentation on the basis that such information is private even though such information is necessary to evidence your damages claims. There is no legitimate reason to withhold this information which speaks directly to *your* claims.

**EXHIBIT C**

# JacksonLewis

Ms. Debra Nelson  
November 3, 2025  
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**Please consider this deficiency letter as our good faith attempt to meet and confer as required by Rule 37(a)(1).** Please supplement these deficient responses by 12:00pm on November 5, 2025, to cure these deficiencies to avoid a Motion to Compel.

I have outlined below the deficiencies in each of your responses.

***REQUEST NO. 1: Produce copies of any communications or documents between you and any person (except for your prior attorney) regarding the claims and allegations in your lawsuit. This request includes, but is not limited to, emails from your personal email account(s), text messages from your phone, messages on social media, and any documents exchanged.***

***Your Response:*** All responsive communications and recordings are already produced and filed at ECF 177 and ECF 40.

You have claimed multiple times that you have received information about witnesses and other information in this lawsuit. Most recently on Sunday, October 19, you stated you received information about Jeff Womack returning to work, which was incorrect, and threatened to file a second Motion to Compel if he was not produced for deposition. Such communications (and any others you have had with individuals about your claims in this lawsuit) are relevant and should be produced.

***REQUEST NO. 3: Produce all audio and video recordings that relate to your employment with Defendant Curtiss-Wright or your claims in this lawsuit.***

***Your Response:*** All responsive communications and recordings are already produced and filed at ECF 40.

Defendants do not have access to the flash drive that you sent the Court. We have contacted the Court to request a copy and are advised that the Court will not make a copy and also will not release the flash drive because you've submitted it to the Court. You are obligated to maintain these files and to produce them when requested directly to Defendants. You cannot avoid discovery by putting documents outside of your possession. To the extent that you do not have other copies of the documents on that flash drive, it is your responsibility to retrieve your property from the Court and produce the documents and media contained on the flash drive to Defendants in response to this Request.

***REQUEST NO. 6: Produce all documents supporting your allegations that Defendants' actions resulted in monetary damages (including, but not limited to, lost wages, loss of future wages, lost benefits, loss of future benefits, and litigation expenses) to you.***

***Your Response:*** Attorney fees \$2,250; consultation fees totaling \$650; lost wages from 11/15/2023 to 3/15/2024 \$22,781.44. These amounts are estimates based on records available and will be supplemented as discovery continues.

**EXHIBIT C**

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Thank you for providing these numbers. However, the Request asks for documents supporting those figures. To the extent that you have receipts, bills, or statements of work showing that you have incurred these expenses, those are examples of documents that should be produced in response to this Request.

**REQUEST NO. 7:** *Produce all documents relating to or supporting your allegations that Defendants' actions resulted in your suffering mental and emotional distress.*

**Your Response:** *Plaintiff can request a letter from her therapist to support claims of emotional distress.*

This response was due on October 22. Stating that you can produce responsive documents is not producing responsive documents. Therefore, this response is deficient. Further, during your deposition, you indicated that you were seeking significant emotional distress damages in this case, and so please produce all documents supporting your request for such damages, including medical expenses and medical records.

**REQUEST NO. 8:** *Produce all documents referring to, reflecting, evidencing, or commenting on your physical, mental, or emotional health or condition since April 2022 to present, including, but not limited to, all opinions, reports, communications, and files from present or prior physicians, psychiatrists, psychologists, social workers, therapists, clergy, counselors, or any other professional commenting on your physical, mental, or emotional health, including tests, test results, or evaluation reports for any tests taken, and statements of charges for services rendered.*

**Your Response:** *Plaintiff objects that the requests seek confidential medical information not relevant or proportional to the needs of this case and protected by HIPAA. Plaintiff will provide a summary letter from her therapist in lieu of medical records.*

You claim in Count XII of your Fourth Amended Complaint that you suffered severe emotional distress (Fourth Amended Complaint ¶142), and you are seeking compensatory damages for emotional damages, mental anguish, and loss of enjoyment of life. Information regarding your medical state from immediately before your employment with Curtiss Wright to the present is highly relevant to your claims that Curtiss Wright caused you mental and/or physical injury resulting in damages. By alleging that your employment caused you severe emotional distress resulting in damages, you placed your recent medical history at issue. This request is narrowly tailored because it only seeks medical history from April 2022, a month before you were hired by Defendant Curtiss Wright to the present. It is highly relevant to your claims and the defenses whether your medical and/or psychotherapy records show a change in medical, physical, or emotional well-being during that time frame.

**REQUEST NO. 9:** *Produce signed copies of the psychotherapy records authorization form and medical records authorization form attached as Attachments A and B.*

**Your Response:** *See Response to No. 8.*

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See Defendants' Response to No. 8.

**REQUEST NO. 11:** *Produce all documents which reflect income, compensation, and/or earnings of any kind received by you from November 2023 through present, including documents showing wages, salary, and benefits; independent contractor income; unemployment compensation benefits; insurance payments; disability benefits; retirement benefits; annuity; pension; or any other payments you received.*

**Your Response:** *Plaintiff objects as overly broad and intrusive. Plaintiff has been employed since March 18, 2024, and does not possess additional responsive income or compensation records related to this action. Plaintiff will supplement if any become available.*

This is not overly broad or intrusive. You claim economic and compensatory damages because of your termination. As a result, all sources of income or compensation that you received in the period that you claim you were damaged serves to mitigate your damages and bears directly on your claimed damages.

**REQUEST NO. 12:** *Produce each federal and state income tax return (including W-2 forms, 1099 forms, schedules, and attachments) that you filed or intend to file from 2022 through present.*

**Your Response:** *Plaintiff objects that this request seeks private financial records not relevant or proportional to the needs of this case. No responsive tax returns will be produced absent a protective order. Plaintiff reserves the right to supplement if ordered by the Court.*

Your tax returns are relevant to this case because you are claiming lost wages and other compensatory damages. To the extent that you are claiming that you have lost income or suffered economic damage because of the actions of the Defendants, your financial records are highly relevant to this case.

**REQUEST NO. 13:** *Produce all documents that you provided to or received from, and all communication with, the Office of the Naval Inspector General in relation to any complaint that you filed against Defendant Curtiss-Wright.*

**Your Response:** *Plaintiff objects as irrelevant to the claims or defenses in this matter and disproportionate to the needs of the case. No responsive documents are in Plaintiff's possession.*

There is no good faith basis for objections on the grounds that documents that you provided to, or received from, and your communications with, the Office of the Navy Inspector General in relation to complaints you filed against Defendant Curtiss Wright are not relevant and disproportionate to the needs of this case. Multiple causes of action in this case, notably your Whistleblower Retaliation claim, are based on the theory that you were retaliated against for providing documents to the Naval Inspector General. These documents and communications will be key pieces of evidence related to claims and defenses in this case. Please withdraw these objections and produce these documents.

**REQUEST NO. 18:** *Produce a copy of your current resume.*

**EXHIBIT C**

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***Your Response:*** Plaintiff objects as overly broad and seeking information for purposes of harassment. Plaintiff declines to produce her current resume because her present employment is unrelated to the issues in this litigation. No responsive documents will be produced absent Court order.

There is no good faith basis for you to object to a request for a current resume as "overbroad" or "harassment." A current resume is a single document it is not overbroad. You filed an employment action in which you claim that a white male was paid more than you even though you were more experienced and more qualified. A copy of your current resume is highly relevant to your experience and qualifications. Please withdraw your objections and produce your current resume.

***REQUEST NO. 19:*** Produce all documents obtained by you from any nonparty through a subpoena, public records request, or other formal or informal request, in connection with this lawsuit.

***Your Response:*** Plaintiff has not obtained any documents from non-parties other than those already produced by Defendant. Plaintiff will supplement if additional documents are later obtained.

This response is deficient. You have sent out many subpoenas in connection with this lawsuit and testified in your deposition that you have received some responses. Those responses must be produced as they are relevant to your claims of Intrusion Upon Seclusion and Illegal Interception of Communications.

***REQUEST NO. 21:*** Produce any videos or social media posts related to your employment with Curtiss-Wright or the claims in this lawsuit.

***Your Response:*** All responsive communications and recordings are already produced and filed at ECF 40.

As noted above, Defendants do not have access to the flash drive that you sent the Court. You are independently obligated to produce this information directly to Defendants.

***Interrogatory No. 5:*** Identify all sources of income you received since your last day of employment with Defendant Curtiss-Wright, whether via employment, short-term or long-term disability benefits, social security benefits, workers' compensation benefits, unemployment benefits, self-employment, independent contractor income, insurance payments, retirement benefits, government subsidies, or some other source, and include the amount received and the dates when you received such income.

***Your Response:*** Plaintiff received unemployment benefits and may have cashed in her retirement account, to be verified. Any other sources of income are irrelevant

This response is insufficient and does not answer the question. First, you were asked to list the amounts and dates of such payments – which you failed to do. Second, your statement that you "may have cashed in her retirement account, to be verified" is not an acceptable answer to an Interrogatory as it does not inform Defendants as to whether that occurred. Third, other sources of income are relevant because you are claiming economic and consequential damages during this period.

**EXHIBIT C**

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**Interrogatory No. 7:** *State whether you have ever been a party or claimant in any type of legal action, including, without limitation, bankruptcy proceedings, foreclosure actions, workers' compensation claims, charges of discrimination, lawsuits, or other legal administrative*

**Your Response:** *Plaintiff objects as overbroad and irrelevant. Plaintiff filed a legal malpractice lawsuit against former attorney Bonnie Hunt, Case No. 2025-CP-10-03145.*

This interrogatory is not overbroad or irrelevant. This interrogatory seeks a finite list of litigation that you have been a party to. Furthermore, this Interrogatory seeks information relevant to this case to the extent the claims asserted by you in other lawsuits are similar to those asserted here.

**Interrogatory No. 8:** *State whether you have ever been arrested for, charged with, convicted of, or pled guilty or no contest ("conviction") to any crime, and if so, indicate: a) the crime for which you were arrested, charged, or convicted; b) the facts resulting in you being charged with the crime for which you were arrested or convicted; c) the dates of all conviction(s); d) the jurisdiction(s) in which you were convicted; and e) the sentence(s) imposed against you as the result of such conviction(s).*

**Your Response:** *Plaintiff objects as irrelevant and not proportional to the needs of this case under Rule 26(b)(1).*

As a Plaintiff in this action and an individual giving testimony in a civil action, your criminal history especially in relation to charges or convictions related to fraud or dishonesty are relevant to this action and proportional to the needs of this case because it appears that many your claims will be supported by your testimony should this case go to trial.

**Interrogatory No. 9:** *Identify all account(s) and/or webpage(s) with any social networking websites (including, but not limited to, X (formerly known as "Twitter"), Facebook, MySpace, LinkedIn, Snapchat, TikTok, Instagram), or any other message board(s), webpage(s), website(s), blog(s), and all usernames that you have had in your name or on you behalf since November 21, 2023, to the present, and for each provide: a) the identifying account or username; b) the date the account was activated; c) whether the account is still active; and d) if the account is not active, the date it was deactivated and why it was deactivated.*

**Your Response:** *Plaintiff objects as intrusive and irrelevant. No responsive information will be provided.*

You have previously sent Defendants discovery requests seeking information regarding the viewing and monitoring of your social media accounts. There is no good faith basis for you to ask Defendants to expend time and resources to identify all individuals who viewed your social media accounts and then respond to this Interrogatory asking you to identify such social media accounts by stating that the request is intrusive and irrelevant.

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Ms. Debra Nelson  
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**Interrogatory No. 15:** *Identify all legal entities that you own, operate, or participate as a member in, including but not limited to Nelson Funding Group, LLC.*

**Your Response:** *Plaintiff objects as irrelevant and intrusive. Nelson Funding Group, LLC, and other entities have no relation to this case.*

You have claimed economic and consequential damages in this case, information regarding legal entities that you control and can accrue profits and losses from are relevant to this case.

Thank you for your prompt attention to this matter. We look forward to receiving your cured Responses to Defendants' First Set of Requests for Production and First Set of Interrogatories. Please note that a failure to cure will result in a Motion to Compel these responses.

Very truly yours,



T. Chase Samples  
(864) 672-8034 Direct  
[Chase.Samples@jacksonlewis.com](mailto:Chase.Samples@jacksonlewis.com)  
Jackson Lewis P.C.

**EXHIBIT C**



# JacksonLewis

Jackson Lewis P.C.  
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Greenville SC 29601  
(864) 232-7000 Direct  
(864) 235-1381 Fax  
[jacksonlewis.com](http://jacksonlewis.com)

VIA CERTIFIED MAIL, RETURN RECEIPT REQUESTED

October 31, 2025



Re: Debra Nelson vs. Curtiss Wright Electro Mechanical Corp. d/b/a Curtiss-Wright Steam and Air Solutions, Stephanie Lanier, and Shane Sablotsky  
U.S. District Court for the District of South Carolina, Charleston Division  
Civil Action No. 2:25-CV-00405-RMG-MGB  
Psychotherapy Records regarding Debra Nelson

Dear Ms. Shealy:

Our firm represents Defendants Curtiss-Wright Steam and Air Solutions, Stephanie Lanier, and Shan Sablotsky in the above-referenced lawsuit. Enclosed is a subpoena requesting that your office send us a copy of any and all documents and materials relating to the psychotherapy records of Plaintiff Debra Nelson (DOB:11,1972; SSN: 249-29-XXX). In lieu of your having to appear in person to produce the records, we will accept a mailed copy of your records by November 20, 2025.

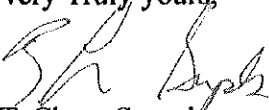
Also enclosed is a Records Certificate of Authority that you or your designee will need to complete and sign. Please return the original signed certificate to us along with the records that it supports. This Certificate may be filed with the court; therefore, you should keep a copy for your files. We will accept and process an invoice for reasonable and customary copying and mailing charges.

If you have any questions, please do not hesitate to contact us. Thank you in advance for your assistance with this matter.

**EXHIBIT D**



Very Truly yours,

A handwritten signature in black ink, appearing to read "T. Chase Samples", written over the closing "yours,".

T. Chase Samples

Principal

864-672-8034 Direct

Jackson Lewis P.C.

TCS/SG

## UNITED STATES DISTRICT COURT

for the

District of South Carolina

Debra Nelson

*Plaintiff*Curtiss Weight Electro Mechanical Corp. d/b/a  
Curtiss-Wright Steam and Air Solutions et. al.*Defendant*

Civil Action No. 2:25-CV-00405-RMG-MGB

SUBPOENA TO PRODUCE DOCUMENTS, INFORMATION, OR OBJECTS  
OR TO PERMIT INSPECTION OF PREMISES IN A CIVIL ACTION

Sue E. Shealy, LISW-CP

To:

(Name of person to whom this subpoena is directed)

☒ **Production: YOU ARE COMMANDED** to produce at the time, date, and place set forth below the following documents, electronically stored information, or objects, and to permit inspection, copying, testing, or sampling of the material:

See attached Exhibit A

Place:

Date and Time:

10/31/2025 12:26 am

☐ **Inspection of Premises: YOU ARE COMMANDED** to permit entry onto the designated premises, land, or other property possessed or controlled by you at the time, date, and location set forth below, so that the requesting party may inspect, measure, survey, photograph, test, or sample the property or any designated object or operation on it.

Place:

Date and Time:

The following provisions of Fed. R. Civ. P. 45 are attached – Rule 45(c), relating to the place of compliance; Rule 45(d), relating to your protection as a person subject to a subpoena; and Rule 45(e) and (g), relating to your duty to respond to this subpoena and the potential consequences of not doing so.

Date: \_\_\_\_\_

CLERK OF COURT

OR

\_\_\_\_\_  
Signature of Clerk or Deputy Clerk

/s/ T. Chase Samples

\_\_\_\_\_  
Attorney's signature

The name, address, e-mail address, and telephone number of the attorney representing (name of party) Curtiss-Wright Steam and Air Solutions et. al., who issues or requests this subpoena, are:

T. Chase Samples; 15 South Main Street, STE 700, Greenville, SC 29601; chase.samples@jacksonlewis.com; 864-672-8034

## Notice to the person who issues or requests this subpoena

If this subpoena commands the production of documents, electronically stored information, or tangible things or the inspection of premises before trial, a notice and a copy of the subpoena must be served on each party in this case before it is served on the person to whom it is directed. Fed. R. Civ. P. 45(a)(4).

EXHIBIT D

Civil Action No. 2:25-CV-00405-RMG-MGB

**PROOF OF SERVICE***(This section should not be filed with the court unless required by Fed. R. Civ. P. 45.)*I received this subpoena for *(name of individual and title, if any)* \_\_\_\_\_on *(date)* \_\_\_\_\_.☐ I served the subpoena by delivering a copy to the named person as follows: \_\_\_\_\_\_\_\_\_\_  
\_\_\_\_\_ on *(date)* \_\_\_\_\_; or☐ I returned the subpoena unexecuted because: \_\_\_\_\_Unless the subpoena was issued on behalf of the United States, or one of its officers or agents, I have also  
tendered to the witness the fees for one day's attendance, and the mileage allowed by law, in the amount of

\$ \_\_\_\_\_.

My fees are \$ \_\_\_\_\_ for travel and \$ \_\_\_\_\_ for services, for a total of \$ 0.00 .

I declare under penalty of perjury that this information is true.

Date: \_\_\_\_\_

\_\_\_\_\_  
*Server's signature*\_\_\_\_\_  
*Printed name and title*\_\_\_\_\_  
*Server's address*

Additional information regarding attempted service, etc.:

**EXHIBIT D**

**Federal Rule of Civil Procedure 45 (c), (d), (e), and (g) (Effective 12/1/13)****(c) Place of Compliance.**

**(1) For a Trial, Hearing, or Deposition.** A subpoena may command a person to attend a trial, hearing, or deposition only as follows:

- (A) within 100 miles of where the person resides, is employed, or regularly transacts business in person; or
- (B) within the state where the person resides, is employed, or regularly transacts business in person, if the person
  - (i) is a party or a party's officer; or
  - (ii) is commanded to attend a trial and would not incur substantial expense.

**(2) For Other Discovery.** A subpoena may command:

- (A) production of documents, electronically stored information, or tangible things at a place within 100 miles of where the person resides, is employed, or regularly transacts business in person; and
- (B) inspection of premises at the premises to be inspected.

**(d) Protecting a Person Subject to a Subpoena; Enforcement.**

**(1) Avoiding Undue Burden or Expense; Sanctions.** A party or attorney responsible for issuing and serving a subpoena must take reasonable steps to avoid imposing undue burden or expense on a person subject to the subpoena. The court for the district where compliance is required must enforce this duty and impose an appropriate sanction—which may include lost earnings and reasonable attorney's fees—on a party or attorney who fails to comply.

**(2) Command to Produce Materials or Permit Inspection.**

**(A) Appearance Not Required.** A person commanded to produce documents, electronically stored information, or tangible things, or to permit the inspection of premises, need not appear in person at the place of production or inspection unless also commanded to appear for a deposition, hearing, or trial.

**(B) Objections.** A person commanded to produce documents or tangible things or to permit inspection may serve on the party or attorney designated in the subpoena a written objection to inspecting, copying, testing, or sampling any or all of the materials or to inspecting the premises—or to producing electronically stored information in the form or forms requested. The objection must be served before the earlier of the time specified for compliance or 14 days after the subpoena is served. If an objection is made, the following rules apply:

- (i) At any time, on notice to the commanded person, the serving party may move the court for the district where compliance is required for an order compelling production or inspection.
- (ii) These acts may be required only as directed in the order, and the order must protect a person who is neither a party nor a party's officer from significant expense resulting from compliance.

**(3) Quashing or Modifying a Subpoena.**

**(A) When Required.** On timely motion, the court for the district where compliance is required must quash or modify a subpoena that:

- (i) fails to allow a reasonable time to comply;
- (ii) requires a person to comply beyond the geographical limits specified in Rule 45(c);
- (iii) requires disclosure of privileged or other protected matter, if no exception or waiver applies; or
- (iv) subjects a person to undue burden.

**(B) When Permitted.** To protect a person subject to or affected by a subpoena, the court for the district where compliance is required may, on motion, quash or modify the subpoena if it requires:

- (i) disclosing a trade secret or other confidential research, development, or commercial information; or

(ii) disclosing an unretained expert's opinion or information that does not describe specific occurrences in dispute and results from the expert's study that was not requested by a party.

**(C) Specifying Conditions as an Alternative.** In the circumstances described in Rule 45(d)(3)(B), the court may, instead of quashing or modifying a subpoena, order appearance or production under specified conditions if the serving party:

- (i) shows a substantial need for the testimony or material that cannot be otherwise met without undue hardship; and
- (ii) ensures that the subpoenaed person will be reasonably compensated.

**(e) Duties in Responding to a Subpoena.**

**(1) Producing Documents or Electronically Stored Information.** These procedures apply to producing documents or electronically stored information:

**(A) Documents.** A person responding to a subpoena to produce documents must produce them as they are kept in the ordinary course of business or must organize and label them to correspond to the categories in the demand.

**(B) Form for Producing Electronically Stored Information Not Specified.** If a subpoena does not specify a form for producing electronically stored information, the person responding must produce it in a form or forms in which it is ordinarily maintained or in a reasonably usable form or forms.

**(C) Electronically Stored Information Produced in Only One Form.** The person responding need not produce the same electronically stored information in more than one form.

**(D) Inaccessible Electronically Stored Information.** The person responding need not provide discovery of electronically stored information from sources that the person identifies as not reasonably accessible because of undue burden or cost. On motion to compel discovery or for a protective order, the person responding must show that the information is not reasonably accessible because of undue burden or cost. If that showing is made, the court may nonetheless order discovery from such sources if the requesting party shows good cause, considering the limitations of Rule 26(b)(2)(C). The court may specify conditions for the discovery.

**(2) Claiming Privilege or Protection.**

**(A) Information Withheld.** A person withholding subpoenaed information under a claim that it is privileged or subject to protection as trial-preparation material must:

- (i) expressly make the claim; and
- (ii) describe the nature of the withheld documents, communications, or tangible things in a manner that, without revealing information itself privileged or protected, will enable the parties to assess the claim.

**(B) Information Produced.** If information produced in response to a subpoena is subject to a claim of privilege or of protection as trial-preparation material, the person making the claim may notify any party that received the information of the claim and the basis for it. After being notified, a party must promptly return, sequester, or destroy the specified information and any copies it has; must not use or disclose the information until the claim is resolved; must take reasonable steps to retrieve the information if the party disclosed it before being notified; and may promptly present the information under seal to the court for the district where compliance is required for a determination of the claim. The person who produced the information must preserve the information until the claim is resolved.

**(g) Contempt.**

The court for the district where compliance is required—and also, after a motion is transferred, the issuing court—may hold in contempt a person who, having been served, fails without adequate excuse to obey the subpoena or an order related to it.

**Debra Nelson v. Curtiss-Wright Electro-Mechanical Corp, Stephanie Lanier, and Shane Sablotsky**  
**USDC -- District of South Carolina -- Civil Action No. 2-25-cv-00405-RMG-MGB**

**EXHIBIT A**

Any and all medical records, reports, memoranda, notes, correspondence or other written documents of any nature whatsoever pertaining to any and all treatment rendered to **Debra Nelson** (hereinafter referred as the plaintiff) including, but not limited to, the following:

1. Counseling records;
2. Mental health treatment records;
3. Psychological records;
4. All patient registration, history, or admission forms;
5. All patient questionnaires;
6. All patient insurance forms;
7. All progress notes, reports, and summaries;
8. All clinical notes and reports;
9. All consultation notes, reports, or summaries;
10. All handwritten notes made by any person pertaining to the plaintiff;
11. All documents related to any telephone calls to, from, or pertaining to the plaintiff;
12. All documents and reports pertaining to any diagnostic tests, procedures, or studies;
13. Records of prescribed medication and treatments;
14. All correspondence between provider or her administrative staff, and the plaintiff;
15. All invoices and statements rendered for provider's services;
16. All treatment protocols;
17. All informed consent forms;
18. Any and all records relating to drug use and/or abuse;
19. Any and all records relating to alcohol use and/or abuse;
20. Any and all records relating to prescription medication use and/or abuse;
21. All notes, correspondence, or records of any other nature concerning the plaintiff's condition or treatment; and
22. Any other medical or mental health records of any nature whatsoever.
23. All billing records related to these services

**\*You may comply with this subpoena by supplying the requested records by mail or facsimile prior to the date of inspection listed on the subpoena to:**

**Jackson Lewis P.C.**  
**15 South Main Street, Suite 700**  
**Greenville, SC 29601**  
**Fax: (864) 235-1381**  
**Chase.Samples@jacksonlewis.com**

**EXHIBIT D**

IN THE UNITED STATES DISTRICT COURT  
FOR THE DISTRICT OF SOUTH CAROLINA  
CHARLESTON DIVISION

|                                                                                                                                                                                                      |                                 |
|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------|
| Debra Nelson,<br><br>Plaintiff,<br><br>v.<br><br>Curtiss Wright Electro Mechanical Corp. d/b/a<br>Curtiss-Wright Steam and Air Solutions,<br>Stephanie Lanier, and Shane Sablotsky<br><br>Defendants | C.A. No.: 2:25-CV-00405-RMG-MGB |
|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------|

**CERTIFICATE OF AUTHORITY**

I, \_\_\_\_\_ hereby certify that I am in the \_\_\_\_\_  
(Title) of \_\_\_\_\_, located at (Street Address)  
\_\_\_\_\_ (city and state) \_\_\_\_\_ and have personal  
knowledge of such records; that the enclosed documents are a true and complete copy of  
documents in my custody, or control regarding the documents requested in the subpoena issued  
by Jackson Lewis P.C.; that the enclosed documents are kept in the course of a regularly  
conducted business activity; and that it is the regular practice of  
\_\_\_\_\_ create such records as the enclosed documents.

I declare under penalty of perjury under the laws of the United States of America that the  
foregoing is true and correct. Executed on this \_\_\_\_ day of \_\_\_\_\_, 2025.

\_\_\_\_\_  
Signature

\_\_\_\_\_  
Printed Name

**EXHIBIT D**

**IN THE UNITED STATES DISTRICT COURT  
FOR THE DISTRICT OF SOUTH CAROLINA  
CHARLESTON DIVISION**

DEBRA NELSON,

Plaintiff,

v.

Curtiss Wright Electro Mechanical Corp.  
d/b/a Curtiss-Wright Steam and Air  
Solutions, STEPHANIE LANIER, and  
SHANE SABLITSKY,

Defendants

C.A. No. 2:25-cv-00405-DCN-MHC

**DEFENDANTS' RESPONSES TO PLAINTIFF'S  
FIRST SET OF INTERROGATORIES**

**TO: DEBRA NELSON, Plaintiff, *Pro Se***

Pursuant to the Federal Rules of Civil Procedure Rules 26 and 33, Defendants Curtiss Wright Electro Mechanical Corp, Stephanie Lanier, and Shane Sablitsky (collectively "Defendants"), by and through their undersigned counsel, serve these responses to the Interrogatories to Defendants. These responses reflect Defendants' present knowledge and the results of their investigation to date. Defendants reserve the right to amend or supplement these responses as may be necessary or appropriate in the future.

**INTERROGATORIES**

**INTERROGATORY NO. 1:** Identify all persons who participated in, authorized, or had knowledge of the monitoring, interception, or surveillance of Plaintiffs emails. For each person, state their full name, job title, and the extent of their involvement or knowledge.

**ANSWER:** Defendants are unaware of anyone who participated in, authorized, or had knowledge of the monitoring, interception or surveillance of Plaintiff's emails. Defendants maintain that such monitoring, interception, or surveillance did not occur.

**EXHIBIT E**



INTERROGATORY NO. 2: Describe in detail all measures taken to interfere with or disable Plaintiffs printing capabilities, including the dates of such actions, the individuals who carried them out, and the reasons for doing so.

**ANSWER: Defendants are unaware of any measures taken to interfere with or disable Plaintiff's printing capabilities, and, thus, have no information responsive to Interrogatory No. 2.**

INTERROGATORY NO. 3: Identify all persons present and describe in detail the substance of all communications, discussions, and statements made during the meeting on November 15, 2023, concerning Plaintiff Debra Nelson. Your answer should include the date, time, and location of the meeting, the identity of each participant, what each participant said, and any decisions or conclusions reached.

**ANSWER: Defendants are not aware of a November 15, 2023 meeting concerning Plaintiff. Defendants will supplement this response if Plaintiff can provide additional information about the meeting to which she is referring.**

Respectfully submitted this 12<sup>th</sup> day of September 2025,

s/T. Chase Samples

T. Chase Samples (Fed. I.D. No. 10824)

Joseph V. Valenza (Fed. I.D. No. 14416)

Email: Chase.Samples@jacksonlewis.com

Email: Joseph.Valenza@jacksonlewis.com

**JACKSON LEWIS P.C.**

15 South Main Street, Suite 700

Greenville, SC 29601

Phone: 864-232-7000

***ATTORNEYS FOR DEFENDANTS***

**IN THE UNITED STATES DISTRICT COURT  
FOR THE DISTRICT OF SOUTH CAROLINA  
CHARLESTON DIVISION**

DEBRA NELSON,

Plaintiff,

v.

Curtiss Wright Electro Mechanical Corp.  
d/b/a Curtiss-Wright Steam and Air  
Solutions,  
STEPHANIE LANIER, and  
SHANE SABLITSKY,

Defendants.

Case No. 2:25-cv-00405-DCN-MHC

**CERTIFICATE OF SERVICE**

The undersigned certifies that on September 12, 2025, a copy of the foregoing **DEFENDANTS' RESPONSES TO PLAINTIFF'S FIRST INTERROGATORIES**, has been served upon the following via email and United States Mail, postage prepaid and addressed to:

Debra Nelson

***Pro Se Plaintiff***

*s/ T. Chase Samples*

T. Chase Samples

**IN THE UNITED STATES DISTRICT COURT  
FOR THE DISTRICT OF SOUTH CAROLINA  
CHARLESTON DIVISION**

DEBRA NELSON,

Plaintiff,

v.

Curtiss Wright Electro Mechanical Corp.  
d/b/a Curtiss-Wright Steam and Air  
Solutions, STEPHANIE LANIER, and  
SHANE SABLOTSKY,

Defendants

C.A. No. 2:25-cv-00405-DCN-MHC

**DEFENDANTS' RESPONSES TO  
PLAINTIFF'S REQUESTS FOR PRODUCTION OF DOCUMENTS**

**TO: DEBRA NELSON, Plaintiff, *Pro Se***

Pursuant to the Federal Rules of Civil Procedure Rules 26 and 34, Defendants Curtiss Wright Electro Mechanical Corporation, Stephanie Lanier, and Shane Sablotsky (collectively "Defendants"), by and through their undersigned counsel, serve these responses to the Requests for Production of Documents to Defendants. These responses reflect Defendants' present knowledge and the results of their investigation to date. Defendants reserve the right to amend or supplement these responses as may be necessary or appropriate in the future.

**REQUESTS FOR PRODUCTION**

RFP 1: Produce a complete and unredacted copy of Plaintiff Debra Nelson's personnel file from the date of her hire to the present, including but not limited to her employment application, offer letters, contracts, performance evaluations, disciplinary records, commendations, compensation history, and separation documents.

**ANSWER: Curtiss-Wright did not maintain a traditional "personnel file" on Plaintiff but personnel records responsive to this Request are produced at DEFS0001-DEFS0036, DEFS0087-DEFS0132.**

RFP 2: Produce all payroll records for Plaintiff Debra Nelson for the pay period covering

**EXHIBIT F**

September 25, 2023, through September 29, 2023, including but not limited to pay stubs, time sheets, and records of any adjustments made to her pay or recorded hours.

**ANSWER: Plaintiff's pay records covering September 25, 2023, through September 29, 2023 and related email correspondence are produced at DEFS0037-DEFS0058.**

RFP 3: Produce all documents, logs, and communications related to the access, monitoring, or interception of Plaintiffs email account.

**ANSWER: Defendants are unaware of any access, monitoring, or interception of Plaintiff's email account. Defendants maintain that such access, monitoring, or surveillance did not occur, and thus, have no documents, logs, or communications responsive to Request No. 3.**

RFP 4: Produce all documents, including IT work orders, emails, or internal memos, related to any modification or restriction of Plaintiffs access to or use of office equipment, including printers.

**ANSWER: All documents including IT work orders, emails, or internal memos, related to any modification of Plaintiff's access to or use of office equipment, including printers are produced at DEFS0059-DEFS0081.**

RFP 5 (Directed to Stephanie Lanier): Produce any and all documents, notes, emails, or other written records referring or relating to the alleged verbal counseling of Plaintiff on or about July 11, 2023.

**ANSWER: Defendant Lanier is unaware of verbal counselling that occurred on July 11, 2023. To the extent that Plaintiff is referring to verbal counselling that was scheduled to occur on July 14, 2023 but did not take place until July 17, 2023; relevant documents are attached at DEFS0082-DEFS0086.**

RFP 6 (Directed to Shane Sablotsky): Produce true and correct copies of any and all written or recorded statements you made on or about November 14, 2023, and November 15, 2023, concerning Plaintiff Debra Nelson, including but not limited to statements made to Human Resources or other management personnel.

**ANSWER: Defendant Sablotsky is unaware of any written or recorded statement he made on or about November 14, 2023, or November 15, 2023 concerning Plaintiff Debra Nelson, and, thus, he has no documents responsive to RFP 6.**

Respectfully submitted this 12th day of September 2025,

s/T. Chase Samples

T. Chase Samples (Fed. I.D. No. 10824)

Joseph V. Valenza (Fed. I.D. No. 14416)

Email: Chase.Samples@jacksonlewis.com

Email: Joseph.Valenza@jacksonlewis.com

**JACKSON LEWIS P.C.**

**EXHIBIT F**

15 South Main Street, Suite 700  
Greenville, SC 29601  
Phone: 864-232-7000

***ATTORNEYS FOR DEFENDANTS***

**IN THE UNITED STATES DISTRICT COURT  
FOR THE DISTRICT OF SOUTH CAROLINA  
CHARLESTON DIVISION**

DEBRA NELSON,

Plaintiff,

v.

Curtiss Wright Electro Mechanical Corp.  
d/b/a Curtiss-Wright Steam and Air  
Solutions,  
STEPHANIE LANIER, and  
SHANE SABLITSKY,

Defendants.

Case No. 2:25-cv-00405-DCN-MHC

**CERTIFICATE OF SERVICE**

The undersigned certifies that on September 12, 2025, a copy of the foregoing **DEFENDANTS' RESPONSES TO PLAINTIFF'S FIRST REQUEST FOR PRODUCTION OF DOCUMENTS**, has been served upon the following via email and United States Mail, postage prepaid and addressed to:

Debra Nelson

***Pro Se Plaintiff***

*s/ T. Chase Samples*

T. Chase Samples

**EXHIBIT F**

Collective Non-Collective

Bargaining: ☐ Bargaining: ☒

Date

**DISCIPLINARY ACTION REPORT**

**IMPORTANT INSTRUCTIONS:** All disciplinary actions, with the exception of the Informal Discussion, require the re department prior to consultation with the employee.

Employee: Nelson, Deb Hire date: 11/27/72Position: Quality Inspector Department: QualityLocation: Summerville, SC Supervisor: Coleman, AntonioType of Action: ☒ Informal Discussion ☐ Verbal Counseling ☐ 1st Level Written Warning ☐ 2nd Level☐ Suspension ☐ Termination ☐ Occurrence ☐ Other: \_\_\_\_\_Reason for this action: ☐ Performance ☒ Conduct ☐ Attendance/Tardiness ☐☐ Other: \_\_\_\_\_Is this the first instance of this problem? ☒ Yes ☐ No ☐ Counseling date: \_\_\_\_\_Have prior warnings been given? ☐ Yes ☒ No > If yes: ☐ 1st Level date: \_\_\_\_\_☐ 2nd Level date: \_\_\_\_\_

Please specify the dates and reasons for any past discussions (attach additional sheet if necessary):

First occurrence. Previous discussions have not taken place with this employee.

This DAR is to document the Informal discussion. Employee signature is NOT required. The DAR will be maintained for reference. The DAR will NOT be added to the HR File. This DAR may be reviewed if future violations occur to determine discipline.

Indicate date(s) and nature of current incident(s), be specific. (What?, When?, Where?, Consequences?) (attach additional sheet if necessary)

On July 12, 2023 Employee Deb Nelson, came to HR to file a complaint regarding employee Patrick Ingram around the employee's concern of the other employee's accountability. All complaints brought forward by Deb Nelson were sincere and genuine interest to improve the work environment for all employees. However the tone of the conversation was accusatory and did not support a goal for resolution but rather focused on placing blame. The conversation was open environment so HR and Management made a request to move the conversation from open area to a private area. Individuals were present during the meeting to discuss Deb's complaint: Stephanie Lanier (HR), Joe Cal Coleman (Supervisory came in mid way through conversation), Shane Sablitsky (Sr. Quality Manager) and the complaint was being made about)

Curfiss-Wright Code of Conduct specifically in the section outlining our Relationship to Support Each Other and does

DEFS 000281

**EXHIBIT G**

...enriched the employee's knowledge of the organization's mission and vision, and provided an opportunity for the employee to develop and grow in a positive work environment. A Informal Discussion regarding Code of Conduct Section IV E.6 – to support Working in a Positive Environment on July 14, 2023.

This informal discussion will include specific methods to ensure that the employee understands the importance of self-communication that help achieve organizational goals.

In addition, HR will be looking into interpersonal skill development training to include: conflict management and giving

The employee is advised that in accordance with our Progressive Disciplinary Policy, insufficient improvement or misbehavior may result in disciplinary action up to and including termination.

\* Separate memo or Performance Improvement Plan (PIP) may be attached.

#### EMPLOYEE'S COMMENTS

You may, in the space below, make any comments that you wish to be included in your personnel record with this report.

I have read and understand this report of disciplinary action. I understand my signature reflects my acknowledgement and agreement with it.

X

Employee Signature / Date

X

Witness

X

Department Head (

X

Supervisor / Date

X

Human Resources

THIS REPORT IS PART OF THE EMPLOYEE'S PERSONNEL FILE

DEFS 000282

EXHIBIT G



Date of Warning: 07/14/23

View of the Human Resources

Written Warning ☐ Final Warning

Safety

Final date: \_\_\_\_\_

Suspension date: \_\_\_\_\_

Occurrence date: \_\_\_\_\_

and in the manager's file and by HR for  
to move next level of progressive

(Additional sheet if necessary): \*

am. The complaint centered  
y employees are received with  
ie conversation was adversarial  
ersation was not best to have in a  
a conference room. The following  
baup (Quality Inspector), Antonio  
and Patrick Ingram (employee that

not support a positive working

DEFS 000283

EXHIBIT G

**EXHIBIT H**

IN THE UNITED STATES DISTRICT COURT  
DISTRICT OF SOUTH CAROLINA  
CHARLESTON DIVISION

DEBRA NELSON

Plaintiff,

Curtiss Wright Electro Mechanical Corp. d/b/a )  
Curtiss-Wright Steam and Air Solutions )  
STEPHANIE LANIER, and SHANE )  
SABLOTSKY, )

Defendants.

C.A. No.: 2:25-CV-00405-RMG-MGB

PLAINTIFF'S SUPPLEMENTAL REQUEST FOR PRODUCTION – DAR AND  
BADGE ACCESS RECORDS

Pursuant to **Rule 34 of the Federal Rules of Civil Procedure**, Plaintiff requests that Defendants produce the following documents and electronically stored information within **14 days** of service of this request:

**Request No. 1 – Unredacted DAR Reports**

Produce **complete, unredacted copies** of all **Disciplinary Action Reports (DAR)** for **Michelle Broman-Bolton** and **Brian Fogarty**.

These documents are relevant to comparator discipline, workplace-safety incidents, and retaliation analysis. Any redactions made previously were not supported by a privilege log under Rule 26(b)(5). If Defendants assert any privilege, they must provide a **privilege log** identifying the document, the basis for redaction, and the parties involved.

**Request No. 2 – Badge-Access Reports**

Produce **badge-entry and exit (facility-access) logs** for the period **October 6–17, 2025**, for the following Curtiss-Wright employees:

- Jeff Womack
- Stephanie Lanier
- Shane Sablotsky
- Michelle Broman-Bolton
- Patrick Ingram
- Joe Cabaup
- David McKeown

**EXHIBIT I**

- Matthew Claxton

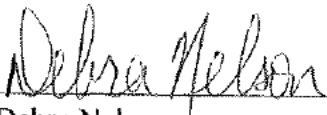
These records are necessary to confirm employee presence and verify Defendants' representations that Jeff Womack remains on medical leave, despite his own statement to Plaintiff that he returned to work part-time.

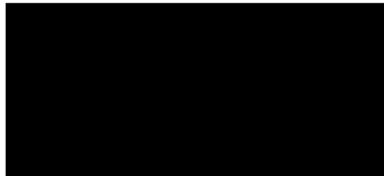
**Request No. 3 – Verification and Certification**

Produce a **written certification** under oath from an authorized Curtiss-Wright representative confirming that:

- a) the DAR reports and badge-access records are complete and unaltered; and
- b) each of the above-named employees was properly notified of any scheduled deposition dates between **October 6–21, 2025**.

Respectfully submitted 17th of October, 2025,

  
Debra Nelson  
Pro Se Plaintiff



# JacksonLewis

Jackson Lewis P.C.  
15 South Main Street, Suite 700  
Greenville SC 29601  
(864) 232-7000 Direct  
(864) 235-1381 Fax  
[jacksonlewis.com](http://jacksonlewis.com)

VIA CERTIFIED MAIL, RETURN RECEIPT REQUESTED

October 31, 2025

Amentum Services, Inc.  
By and through its Registered Agent CT Corporation System  
2 Office Park Court, Suite 103  
Columbia, South Carolina 29223

Re: Debra Nelson vs. Curtiss Wright Electro Mechanical Corp. d/b/a Curtiss-Wright Steam  
and Air Solutions, Stephanie Lanier, and Shane Sablotsky  
U.S. District Court for the District of South Carolina, Charleston Division  
Civil Action No. 2:25-CV-00405-RMG-MGB  
Employment Records regarding Debra Nelson

Dear Sir or Madam:

Our firm represents Defendants Curtiss-Wright Steam and Air Solutions, Stephanie Lanier, and Shan Sablotsky in the above-referenced lawsuit. Enclosed is a subpoena requesting that your office send us a copy of any and all documents and materials relating to the employment of Plaintiff Debra Nelson (([REDACTED]-XXX)). In lieu of your having to appear in person to produce the records, we will accept a mailed copy of your records by November 20, 2025.

Also enclosed is a Records Certificate of Authority that you or your designee will need to complete and sign. Please return the original signed certificate to us along with the records that it supports. This Certificate may be filed with the court; therefore, you should keep a copy for your files. We will accept and process an invoice for reasonable and customary copying and mailing charges.

If you have any questions, please do not hesitate to contact us. Thank you in advance for your assistance with this matter.

**EXHIBIT J**

Very Truly yours,

A handwritten signature in black ink, appearing to read "T. Chase Samples". The signature is fluid and cursive, with the first letters of the first and last names being capitalized and prominent.

T. Chase Samples

Principal

864-672-8034 Direct

Jackson Lewis P.C.

TCS/SG

## UNITED STATES DISTRICT COURT

for the

District of South Carolina

Debra Nelson

*Plaintiff*Curtiss Weight Electro Mechanical Corp. d/b/a  
Curtiss-Wright Steam and Air Solutions et. al.*Defendant*

Civil Action No. 2:25-CV-00405-RMG-MGB

SUBPOENA TO PRODUCE DOCUMENTS, INFORMATION, OR OBJECTS  
OR TO PERMIT INSPECTION OF PREMISES IN A CIVIL ACTION

Amentum Services, Inc.

To:

(Name of person to whom this subpoena is directed)

☒ **Production:** **YOU ARE COMMANDED** to produce at the time, date, and place set forth below the following documents, electronically stored information, or objects, and to permit inspection, copying, testing, or sampling of the material:

See attached Exhibit A

|        |                                         |
|--------|-----------------------------------------|
| Place: | Date and Time:<br>11/21/2025 at 10:00am |
|--------|-----------------------------------------|

☐ **Inspection of Premises:** **YOU ARE COMMANDED** to permit entry onto the designated premises, land, or other property possessed or controlled by you at the time, date, and location set forth below, so that the requesting party may inspect, measure, survey, photograph, test, or sample the property or any designated object or operation on it.

|        |                |
|--------|----------------|
| Place: | Date and Time: |
|--------|----------------|

The following provisions of Fed. R. Civ. P. 45 are attached – Rule 45(c), relating to the place of compliance; Rule 45(d), relating to your protection as a person subject to a subpoena; and Rule 45(e) and (g), relating to your duty to respond to this subpoena and the potential consequences of not doing so.

Date: \_\_\_\_\_

CLERK OF COURT

OR

/s/ T. Chase Samples

Signature of Clerk or Deputy Clerk

Attorney's signature

The name, address, e-mail address, and telephone number of the attorney representing (name of party) Curtiss-Wright Steam and Air Solutions et. al., who issues or requests this subpoena, are:

T. Chase Samples; 15 South Main Street, STE 700, Greenville, SC 29601; chase.samples@jacksonlewis.com;

864-672-8034

## Notice to the person who issues or requests this subpoena

If this subpoena commands the production of documents, electronically stored information, or tangible things or the inspection of premises before trial, a notice and a copy of the subpoena must be served on each party in this case before it is served on the person to whom it is directed. Fed. R. Civ. P. 45(a)(4).

EXHIBIT J

Civil Action No. 2:25-CV-00405-RMG-MGB

**PROOF OF SERVICE***(This section should not be filed with the court unless required by Fed. R. Civ. P. 45.)*I received this subpoena for *(name of individual and title, if any)* \_\_\_\_\_on *(date)* \_\_\_\_\_.☐ I served the subpoena by delivering a copy to the named person as follows: \_\_\_\_\_\_\_\_\_\_  
\_\_\_\_\_ on *(date)* \_\_\_\_\_; or☐ I returned the subpoena unexecuted because: \_\_\_\_\_Unless the subpoena was issued on behalf of the United States, or one of its officers or agents, I have also  
tendered to the witness the fees for one day's attendance, and the mileage allowed by law, in the amount of

\$ \_\_\_\_\_.

My fees are \$ \_\_\_\_\_ for travel and \$ \_\_\_\_\_ for services, for a total of \$ 0.00 .

I declare under penalty of perjury that this information is true.

Date: \_\_\_\_\_

\_\_\_\_\_  
*Server's signature*\_\_\_\_\_  
*Printed name and title*\_\_\_\_\_  
*Server's address*

Additional information regarding attempted service, etc.:

**EXHIBIT J**



**Federal Rule of Civil Procedure 45 (c), (d), (e), and (g) (Effective 12/1/13)****(c) Place of Compliance.**

**(1) For a Trial, Hearing, or Deposition.** A subpoena may command a person to attend a trial, hearing, or deposition only as follows:

- (A) within 100 miles of where the person resides, is employed, or regularly transacts business in person; or
- (B) within the state where the person resides, is employed, or regularly transacts business in person, if the person
  - (i) is a party or a party's officer; or
  - (ii) is commanded to attend a trial and would not incur substantial expense.

**(2) For Other Discovery.** A subpoena may command:

- (A) production of documents, electronically stored information, or tangible things at a place within 100 miles of where the person resides, is employed, or regularly transacts business in person; and
- (B) inspection of premises at the premises to be inspected.

**(d) Protecting a Person Subject to a Subpoena; Enforcement.**

**(1) Avoiding Undue Burden or Expense; Sanctions.** A party or attorney responsible for issuing and serving a subpoena must take reasonable steps to avoid imposing undue burden or expense on a person subject to the subpoena. The court for the district where compliance is required must enforce this duty and impose an appropriate sanction—which may include lost earnings and reasonable attorney's fees—on a party or attorney who fails to comply.

**(2) Command to Produce Materials or Permit Inspection.**

(A) *Appearance Not Required.* A person commanded to produce documents, electronically stored information, or tangible things, or to permit the inspection of premises, need not appear in person at the place of production or inspection unless also commanded to appear for a deposition, hearing, or trial.

(B) *Objections.* A person commanded to produce documents or tangible things or to permit inspection may serve on the party or attorney designated in the subpoena a written objection to inspecting, copying, testing, or sampling any or all of the materials or to inspecting the premises—or to producing electronically stored information in the form or forms requested. The objection must be served before the earlier of the time specified for compliance or 14 days after the subpoena is served. If an objection is made, the following rules apply:

- (i) At any time, on notice to the commanded person, the serving party may move the court for the district where compliance is required for an order compelling production or inspection.
- (ii) These acts may be required only as directed in the order, and the order must protect a person who is neither a party nor a party's officer from significant expense resulting from compliance.

**(3) Quashing or Modifying a Subpoena.**

(A) *When Required.* On timely motion, the court for the district where compliance is required must quash or modify a subpoena that:

- (i) fails to allow a reasonable time to comply;
- (ii) requires a person to comply beyond the geographical limits specified in Rule 45(c);
- (iii) requires disclosure of privileged or other protected matter, if no exception or waiver applies; or
- (iv) subjects a person to undue burden.

(B) *When Permitted.* To protect a person subject to or affected by a subpoena, the court for the district where compliance is required may, on motion, quash or modify the subpoena if it requires:

- (i) disclosing a trade secret or other confidential research, development, or commercial information; or

(ii) disclosing an unretained expert's opinion or information that does not describe specific occurrences in dispute and results from the expert's study that was not requested by a party.

(C) *Specifying Conditions as an Alternative.* In the circumstances described in Rule 45(d)(3)(B), the court may, instead of quashing or modifying a subpoena, order appearance or production under specified conditions if the serving party:

- (i) shows a substantial need for the testimony or material that cannot be otherwise met without undue hardship; and
- (ii) ensures that the subpoenaed person will be reasonably compensated.

**(e) Duties in Responding to a Subpoena.**

**(1) Producing Documents or Electronically Stored Information.** These procedures apply to producing documents or electronically stored information:

(A) *Documents.* A person responding to a subpoena to produce documents must produce them as they are kept in the ordinary course of business or must organize and label them to correspond to the categories in the demand.

(B) *Form for Producing Electronically Stored Information Not Specified.* If a subpoena does not specify a form for producing electronically stored information, the person responding must produce it in a form or forms in which it is ordinarily maintained or in a reasonably usable form or forms.

(C) *Electronically Stored Information Produced in Only One Form.* The person responding need not produce the same electronically stored information in more than one form.

(D) *Inaccessible Electronically Stored Information.* The person responding need not provide discovery of electronically stored information from sources that the person identifies as not reasonably accessible because of undue burden or cost. On motion to compel discovery or for a protective order, the person responding must show that the information is not reasonably accessible because of undue burden or cost. If that showing is made, the court may nonetheless order discovery from such sources if the requesting party shows good cause, considering the limitations of Rule 26(b)(2)(C). The court may specify conditions for the discovery.

**(2) Claiming Privilege or Protection.**

(A) *Information Withheld.* A person withholding subpoenaed information under a claim that it is privileged or subject to protection as trial-preparation material must:

- (i) expressly make the claim; and
- (ii) describe the nature of the withheld documents, communications, or tangible things in a manner that, without revealing information itself privileged or protected, will enable the parties to assess the claim.

(B) *Information Produced.* If information produced in response to a subpoena is subject to a claim of privilege or of protection as trial-preparation material, the person making the claim may notify any party that received the information of the claim and the basis for it. After being notified, a party must promptly return, sequester, or destroy the specified information and any copies it has; must not use or disclose the information until the claim is resolved; must take reasonable steps to retrieve the information if the party disclosed it before being notified; and may promptly present the information under seal to the court for the district where compliance is required for a determination of the claim. The person who produced the information must preserve the information until the claim is resolved.

**(g) Contempt.**

The court for the district where compliance is required—and also, after a motion is transferred, the issuing court—may hold in contempt a person who, having been served, fails without adequate excuse to obey the subpoena or an order related to it.

**Debra Nelson v. Curtiss-Wright Electro-Mechanical Corp, Stephanie Lanier, and Shane Sablotsky**  
**USDC -- District of South Carolina -- Civil Action No. 2-25-cv-00405-RMG-MGB**

**EXHIBIT A**

You are hereby subpoenaed to provide copies of all the following documents for the period of time beginning November 1, 2023, and continuing until the date of your response:<sup>1</sup>

1. All records (including electronic records) related to the employment of **Debra Nelson** including, but not limited to:

- a. Employment agreements;
- b. Application for employment (including any online application);
- c. Hiring records (including any resume, interview notes, offer letter, offer acceptance, correspondence related to hiring);
- d. Job description for all positions held;
- e. Performance evaluations;
- f. Disciplinary or corrective actions;
- g. Documents related to any leaves of absence;
- h. Documents related to the termination of employment;
- i. All other documents contained in any paper or electronic personnel file of Debra Nelson as kept in the ordinary course of business.

2. All records (including electronic records) related to the engagement of **Debra Nelson** in any capacity other than as an employee (e.g. independent contractor, consultant, etc.) including, but not limited to:

- a. Independent contractor agreement;
- b. Consulting agreement;
- c. IRS Form W-9.

3. All records (including electronic records) related to compensation paid to **Debra Nelson**, including, but not limited to, payroll records, IRS W-2 forms, IRS 1099 forms, bonus payments, car allowance, and expense reimbursement forms or check.

4. All records (including electronic records) related to the employee benefits provided to **Debra Nelson** including, but not limited to, health insurance, dental insurance, vision insurance, long-term care insurance, cancer insurance, savings plans, life insurance, disability insurance, and retirement benefits (including any pension benefits, 401(k) plan, or other retirement benefit plan).

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<sup>1</sup>“Document” shall mean any written or graphic matter or other means of preserving thought or expression, and all tangible things from which information can be processed or transcribed, including, but not limited to correspondence, memoranda, notes, messages, letters, telegrams, teletype messages, bulletins, diaries, chronological data, minutes, books, reports, charts, ledgers, invoices, worksheets, receipts, computer printouts, schedules, affidavits, contracts, transcripts, surveys, graphic representations of any kind, photographs, graphs, e-mails, microfilm, videotapes, tape recordings, motion pictures or other films.

**\*You may comply with this subpoena by supplying the requested records by mail or facsimile prior to the date of inspection listed on the subpoena to:**

**Jackson Lewis P.C.  
15 South Main Street, Suite 700  
Greenville, SC 29601  
Fax: (864) 235-1381  
Chase.Samples@jacksonlewis.com**

IN THE UNITED STATES DISTRICT COURT  
FOR THE DISTRICT OF SOUTH CAROLINA  
CHARLESTON DIVISION

|                                                                                                                                                                                                                                                                       |                                        |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------|
| <p>Debra Nelson,</p> <p style="text-align: center;">Plaintiff,</p> <p>v.</p> <p>Curtiss Wright Electro Mechanical Corp.<br/>d/b/a Curtiss-Wright Steam and Air Solutions,<br/>Stephanie Lanier, and Shane Sablotsky</p> <p style="text-align: center;">Defendants</p> | <p>C.A. No.: 2:25-CV-00405-RMG-MGB</p> |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------|

**CERTIFICATE OF AUTHORITY**

I, \_\_\_\_\_ hereby certify that I am in the \_\_\_\_\_ (Title)  
of \_\_\_\_\_, located at \_\_\_\_\_ (Street Address)  
\_\_\_\_\_ (city and state) \_\_\_\_\_ and have personal  
knowledge of such records; that the enclosed documents are a true and complete copy of  
documents in my custody, or control regarding the documents requested in the subpoena issued by  
Jackson Lewis P.C.; that the enclosed documents are kept in the course of a regularly conducted  
business activity; and that it is the regular practice of \_\_\_\_\_ create such  
records as the enclosed documents.

I declare under penalty of perjury under the laws of the United States of America that the  
foregoing is true and correct. Executed on this \_\_\_\_ day of \_\_\_\_\_, 2025.

\_\_\_\_\_  
Signature

\_\_\_\_\_  
Printed Name

**EXHIBIT J**

October 29, 2025

Debra Nelson



Subject: Notice of Termination

In accordance with the Company's Human Resources Policy AM-HRS-PL-0309-LA, titled Professional Conduct (made available to you on the Company's Intranet), and IAW Exhibit B – Progressive Discipline Guide of the applicable CBA, Rule #5d unauthorized absence for three consecutive work shifts, this memorandum serves as notification you are being terminated effective today, October 29, 2025, for unauthorized absence for three consecutive work shifts.

As previously mentioned, you have been out on leave of absence since August 8, 2025. You were notified on September 10, 2025, that Hartford denied your Short-Term Disability and FMLA claim. Additionally, you were also notified that the WC claim you filed on September 12, 2025, was denied by our third-party vendor, Sedgwick, on October 14, 2025. Given the outcomes of these claims and the necessity of your attendance for your role to perform the essential functions of your position, as it would be an undue hardship to allow you to remain on leave indefinitely, you were notified on October 17, 2025, that you were required to return to work on October 20, 2025. You failed to report to work as instructed for your shift, and were sent a follow-up email on October 20, 2025, advising that if you failed to report to work by Wednesday, October 22, 2025, additional discipline up to and including termination would be taken.

Your final paycheck through October 29, 2025, and information on your benefit continuance will be forwarded to your home address. Please contact the Human Resource office at 850-484-6250 if you have questions.

Regards,

Clarence  
Xander

Digitally signed by Clarence Xander  
DN: cn=Clarence Xander, o=T3476,  
email=clarence.xander@amevturn.com  
Reason: I am approving this document

Clarence Xander  
Program Manager

Enclosure: Benefits Continuation Letter  
CC: Personnel File

**EXHIBIT K**



Debra Nelson <[REDACTED]>

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## Nelson v. Curtiss Wright Electro Mechanical Corp., et al

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Valenza, Joseph V. (Greenville) <Joseph.Valenza@jacksonlewis.com>

Thu, Oct 16, 2025 at 5:02 PM

To: Debra Nelson <[REDACTED]>

Cc: "Samples, T. Chase (Greenville)" <Chase.Samples@jacksonlewis.com>

Ms. Nelson,

Per the Court's July 8<sup>th</sup> Scheduling Order, "discovery shall be completed no later than November 5, 2025. All discovery requests shall be served in time for the responses thereto to be served by this date." See ECF No. 53. As you recognized, and explicitly stated, in your September 3<sup>rd</sup> email to us, the Scheduling Order requires that all discovery be completed by this date, and we have a joint obligation to adhere to that deadline.

The additional discovery requests that you sent to us last night, October 15<sup>th</sup>, under Rule 34, are untimely. We have 30 days to respond to those requests under Rule 34 which would set a due date of November 15 – 10 days after discovery in this case is closed. Because these requests are untimely, we will not be responding to them.

Nevertheless, here are our specific objections to your discovery requests:

1. ***Unredacted DAR Reports for Michelle Broman-Bolton and Brian Fogarty, previously produced with redactions. These records are relevant to comparator discipline, workplace safety, and retaliation analysis. Please produce the complete versions or identify any specific privilege claimed under Rule 26(b)(5).***

We are not aware of what redactions you are referring to. But, unreacted versions of these reports are included in today's document production to you.

2. ***Badge-Entry and Exit Logs (Facility Access Reports) for the period October 6–17, 2025 for the following Curtiss-Wright employees:***

***Jeff Womack***

***Stephanie Lanier***

***Shane Sablotsky***

***Michelle Broman-Bolton***

***Patrick Ingram***

***Joe Cabaup***

**EXHIBIT L**

11/4/25, 11:56 PM

Gmail - Nelson v. Curtiss Wright Electro Mechanical Corp., et al

**David McKeown****Matthew Claxton**

***These records are needed to verify presence at the facility and to clarify defense representations that Mr. Womack remains on protected medical leave, despite his own statement to me that he has returned to work part-time.***

Not only is this request untimely, it is inappropriate. As we have previously advised you on multiple occasions, Mr. Womack is out of work on protected medical leave and we will produce him for deposition once he returns, even if it is after the discovery period ends. We had asked you not to disturb Mr. Womack's protected medical leave, but you contacted him anyway and told him that he was required to sit for a deposition. He contacted Curtiss Wright to complain that you were contacting him while he was on leave. There is no obligation for us to prove to your satisfaction that Mr. Womack is on leave by producing his Badge entry and exit logs, and we will not do so. Further, the badge-entry and exit logs of the other individuals for the past 10 days that you've listed are not relevant to Mr. Womack's leave or any issue in this case and seem to serve no purpose other than to burden Curtiss Wright or gain personal information on individuals who you intend to depose next Tuesday. As such, we will not produce these records.

Finally, yesterday you sent us an email stating something to the effect of "I'd like to add David McKeown to the list", to the extent that this means that you would like to depose him on Tuesday, October 21, that is not proper notice to do so. This is the first time there has been any mention of this individual in this case and there are only 3 business days between your request and the proposed deposition date. That is not enough time to assess his availability and adequately and fairly prepare a witness for deposition. As such he will not be produced for deposition on Tuesday, October 21. Furthermore, if you intend to depose Jeff Womack and at least three former employees, David McKeown would be your **eleventh (11<sup>th</sup>)** deposition which exceeds the number allowed to you under the Federal Rules of Civil Procedure.

**Joseph V. Valenza**

Attorney at Law

**Jackson Lewis P.C.**

15 South Main Street

Suite 700

Greenville, SC 29601

Direct: (864) 672-8078 | Main: (864) 232-7000

[Joseph.Valenza@jacksonlewis.com](mailto:Joseph.Valenza@jacksonlewis.com) | [www.jacksonlewis.com](http://www.jacksonlewis.com)

[Quoted text hidden]

**EXHIBIT L**

Case No. 2:25-CV-00405-RMG-MGB

**CERTIFICATE OF SERVICE**

I hereby certify that on this 5th day of November, 2025, I served a true and correct copy of the foregoing **Plaintiff's Motion to Compel Discovery, for Protective Order, and for Sanctions** and Exhibits A–L by U.S. Mail and by email, postage prepaid, addressed to:

**T. Chase Samples, Esq.**  
**Joseph V. Valenza, Esq.**  
Jackson Lewis P.C.  
15 South Main Street, Suite 700  
Greenville, SC 29601

Respectfully submitted 5th of November, 2025,



Debra Nelson  
Pro Se Plaintiff

